IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No.3

CP (CAA) No.19/Chd/J&K/2025
(2nd Motion)

IN THE MATTER OF:
Banday Ideal Products Ltd. ... Petitioner

And

Bandey Impex Pvt. Ltd. ... Respondent

Under Section: 230-232, CA 2013

Order delivered on 05.06.2025

CORAM:
SHRI. K. K. SINGH, HON'BLE MEMBER (T)
SHRI. K. BISWAL, HON'BLE MEMBER (J)

PRESENT:-
For the Petitioner : Mr. Nahush Jain, Advocate

ORDER

1. Proceedings under Section 230-232 of the Companies Act, 2013 have been filed.
2. Heard the Ld. Counsel of the Petitioner. The First Motion Petition order was passed on 09.05.2025 in CA (CAA) No.16/Chd/J&K/2024 (1st Motion). In terms thereof, the meeting of shareholders/creditors were dispensed with.
3. Section 230 (5) of the Companies Act, 2013 and Rule 8 of the Companies (Companies Arrangements and Amalgamation) Rules, 2016 provides for issuance of Notice on such Petitions.
4. Section 230 (5) and relevant part of Rule 8 read as follows:-

"230. Power of compromise or make arrangements with creditors and members

(5) A notice under sub-section (3) along with all the documents in such form as may be prescribed shall also be sent to the Central Government, the income-tax authorities, the Reserve Bank of India, the Securities and Exchange Board, the Registrar , the respective stock

exchanges, the Official Liquidator , the Competition Commission of India established under sub-section (1) of section 7 of the Competition Act, 2002, if necessary, and such other sectoral regulators or authorities which are likely to be affected by the compromise or arrangement and shall require that representations, if any, to be made by them ***shall be made within a period of thirty days from the date of receipt of such notice, failing which, it shall be presumed that they have no representations to make on the proposals.***

Rule 8

8. Notice to statutory authorities.— ***(1) For the purposes of sub section (5) of section 230 of the Act, the notice shall be in Form No. CAA.3, and shall be accompanied with a copy of the scheme of compromise or arrangement, the explanatory statement and the disclosures mentioned under rule 6, and shall be sent to.- (i) the Central Government, the Registrar of Companies, the Income tax authorities, in all cases; (ii) the Reserve Bank of India, the Securities and Exchange Board of India, the Competition Commission of India, and the stock exchanges, as may be applicable; (iii) other sectoral regulators or authorities, as required by Tribunal. (2) The notice to the authorities mentioned in sub-rule (1) shall be sent forthwith, after the notice is sent to the members or creditors of the company, by registered post or by speed post or by courier or by hand delivery at the office of the authority. (3) If the authorities referred to under sub-rule (1) desire to make any representation under sub-section (5) of section 230, the same shall be sent to the Tribunal within a period of thirty days from the date of receipt of such notice and copy of such representation shall simultaneously be sent to the concerned companies and in case no representation is received within the stated period of thirty days by the Tribunal, it shall be presumed that the authorities have no representation to make on the proposed scheme of compromise or arrangement."***

5. In view of the above, issue notice to the authorities specified in Section 230(5) for submitting their representation if any.

6. (a).Petitioner(s) are directed to take steps for issuance of notice in Form CAA3 and to the Central Government, through the Ministry of Corporate Affairs to the Jurisdictional Regional Director(s), Ministry of Corporate Affairs.

   6 (b). Notices to the Regional Director(s) to be sent at email: rd.north@mca.gov.in.

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6 (c). Notice to the RoC, Jammu and Kashmir; to be sent at email: roc.jammu@mca.gov.in.

6(d). Notice to the Official Liquidator to be sent at email: roc.jammu@mca.gov.in ; roc.srinagar@mca.gov.in .

6(e). Notice to the Income Tax Authorities to be sent at email: chandigarh.pccit@incometax.gov.in .

6(f). Notice to the Statutory Regulators / Sectoral Regulators, if applicable, be issued.

7. All the authorities on receipt of the notice, are directed to file their representation, if any, within 30 days from the date of receipt of the notice. In case, no representation is received, it will be presumed that they have no objection to the proposal.
8. Notice of hearing is also directed to be published in two prominently circulating national daily newspapers namely “Jansatta” (Hindi Edition) & “Business Standard” (English Edition) in terms of Rule 16 of the Companies (Companies Arrangements and Amalgamation) Rules, 2016 not less than 10 days before the date fixed for hearing, calling for objections, if any on or before the next date of hearing. The Petitioner shall also issue notices to the RD, RoC, OL, Income Tax Authorities and sectoral regulators, if any, informing the date of hearing.
9. List the matter for hearing on 28.08.2025.

Sd/-

(K. K. SINGH)
MEMBER (TECHNICAL)

Sd/-

(K.BISWAL)
MEMBER (JUDICIAL)

Atiqur Rehman
05.06.2025